

24STLC04952 24STLC04952

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-01

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Case Number: 24STLC04952 Hearing Date: September 1, 2026 Dept: 25

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Interinsurance

Exchange of the Automobile Club v. Menendez, et al.

COMP. FILED: 07-11-24

CASE NUMBER: 24STLC04952

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE DISMISSAL AS TO DEFENDANT SARAH MENENDEZ ONLY [CCP § 473(d)]

MOVING PARTY: Plaintiff Interinsurance Exchange of the
Automobile Club

RESP. PARTY: None

MOTION TO VACATE
DISMISSAL

(Code Civ. Proc., § 473(d))

TENTATIVE RULING:

The Court DENIES Interinsurance
Exchange of the Automobile Club's motion to vacate the dismissal entered

against Sarah Menendez.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 29, 2026 ☐

Late ☒ None

REPLY: None

filed as of August 29, 2026 ☐

Late ☒ None

ANALYSIS:

Interinsurance

Exchange of the Automobile Club filed this subrogation action against Sarah Menendez and Julie Aldana. It obtained a default against Aldana only, which it then agreed to set aside before dismissing the “[e]ntire action of all parties and all causes of action.” Citing Code of Civil Procedure section 473, subdivision (d), Interinsurance now moves to vacate the dismissal as to Menendez only.

Code of Civil Procedure

section 473, subdivision (d) allows the Court to correct its own clerical mistakes. The collision that was the genesis of this case happened almost four years ago. Menendez was served over two years ago. Dismissing the wrong party nearly a year ago was Interinsurance's mistake, not the Court's. (Romadka v. Hoge (1991) 232 Cal.App.3d 1231, 1235, fn. 2.) The Court will not revive this action against Menendez now.

The Court DENIES Interinsurance's motion.